

M/s New Fab Engineering Works v. Paschimanchal Vidyut Vitran Nigam

High Court of Judicature at Allahabad · Division Bench · 15 April 2019 · Writ - C No. 11292 of 2019 · **Stay of assessment and citation; supply restored through new meter pending writ.**

HEADNOTE

Writ challenging on-spot meter testing after the licensee broke open the meter. Without deciding the clause 5.6(c)(iii) independent-laboratory plea, the Court stayed the assessment orders and citation and directed restoration of supply through a new tested meter; the writ remained pending.

FACTUAL SUMMARY

The petitioners, M/s New Fab Engineering Works, challenged PVVNL orders dated 26.12.2018 and 19.12.2018 and a citation dated 15.02.2019. They alleged that licensee officials came to their premises, removed the electricity meter, broke it open, and tested it on the spot through the Assistant Engineer (Meter). They contended that clause 5.6(c)(iii) of the Electricity Supply Code, 2005 required testing in an independent laboratory of the consumer's choice, and that sending the already tampered meter for laboratory testing would serve no purpose.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

interim stay and restoration pending writ on meter-testing challenge

HOLDING

Pending a writ challenging assessment and citation after alleged on-spot testing of a meter broken open by the licensee, the Court stayed the impugned orders dated 26.12.2018, 19.12.2018 and the citation dated 15.02.2019, and directed restoration of the petitioners' electricity connection through a new tested meter. The clause 5.6(c)(iii) independent-laboratory issue was not decided. Later listings extended the stay; the writ remained pending. ¶ 15.4.2019

PRINCIPLE TAGS

procedural-listing-no-construction Writ challenging on-spot meter testing after the licensee broke open the meter. Without deciding the clause 5.6(c)(iii) independent-laboratory plea, the Court stayed the assessment orders and citation and directed restoration of supply through a new tested meter; the writ remained pending. ¶ 15.4.2019

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ON-SPOT TESTING OF A METER BROKEN OPEN BY THE LICENSEE COMPLIES WITH CLAUSE 5.6(C)(III) (INDEPENDENT LABORATORY OF THE CONSUMER'S CHOICE).

Only stay and restoration through a new tested meter were granted; the writ was listed for counter affidavit and remained pending. ¶ 15.4.2019